



GENERAL RELEASE AND SETTLEMENT AGREEMENT

Sunrun Inc., a Delaware corporation (“Sunrun”), and Ravi Jain (“Customer”) (collectively, the “Parties”) hereby enter into this General Release and Settlement Agreement (“Settlement Agreement”) as a full and final compromise and settlement of all matters covered by the general release set forth below, including but not limited to, all claims that were or could have been asserted.

1. RECITALS

- 1.1. Customer and Sunrun entered into a Sunrun Solar Power Service Agreement, dated September 12, 2012 & October 12, 2017 (“Service Agreement”), pursuant to which, among other things, Sunrun arranged for a Solar Facility to be designed, constructed and installed on Customer’s residence at 5 Caladium, Rancho Santa Margarita, CA 92688 (“Property”), in exchange for Customer’s obligation to pay for energy produced by the Solar Facility during the Initial Term (as defined in the Service Agreement) (“Sunrun Services”);
- 1.2. Customer claims, and Sunrun denies, that Sunrun failed to meet its contractual obligations, including claims related to the performance of the Solar Facility (hereinafter, “Damage Claim”);
- 1.3. The Parties desire to resolve the claims that were or could have been asserted, and to fully discharge and release claims that they have or may have had against each other, all as more particularly described herein; and
- 1.4. In exchange for the terms and conditions set forth below and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as set forth below.

2. CONSIDERATION

In consideration of the mutual covenants set forth herein and for other good and valuable consideration, the adequacy, sufficiency and receipt of which is hereby acknowledged, the Parties agree and represent as follows:

- 2.1. **Actions Required of Customer:** Customer, and where applicable Customer’s counsel, agree to do the following:

- 2.1.1. Customer will deliver to counsel for Sunrun a copy of this Settlement Agreement executed by Customer;
- 2.1.2. Customer will complete and return to counsel for Sunrun a W-9 form completed by the payee identified in Section 2.2 below.

Actions Required of Sunrun: Within thirty (30) business days of Customer signing this Settlement Agreement and provides a completed W-9 form to Sunrun, Sunrun will: issue and deliver to Customer a one-time settlement check in the amount of \$2,000.00 (“Settlement Payment”), which is inclusive of all attorney’s fees, damages, costs, and other fees associated with the Damage Claim, that shall be made payable to Ravi Jain.

3. REPRESENTATIONS, WARRANTIES, AND COVENANTS

- 3.1. As a material inducement for Sunrun entering into this Settlement Agreement, Customer represents and warrants that Customer has full authority to enter into this Settlement Agreement to fully and finally resolve claims related to the Damage Claim;
- 3.2. As a material inducement for entering into this Settlement Agreement, the Parties represent and warrant to each other that:
 - 3.2.1. They are entering into this Settlement Agreement solely of their own judgment and free will, and after the opportunity for consultation with their own legal counsel;
 - 3.2.2. They believe that this Settlement Agreement is fair, reasonable, and in their best interest;
 - 3.2.3. They have relied upon nothing said by anyone connected with this dispute, other than their own legal counsel, either as to liability, as to the extent of damages, chances of success in the trial court or on appeal, insurance coverage available, or as to any other matter, except as expressly set forth in this Settlement Agreement and the exhibits thereto;
 - 3.2.4. They and their attorneys, accountants, agents, representatives and other advisors have had sufficient disclosure of information and knowledge of all material facts and legal rights and remedies necessary to evaluate the conduct of the other Parties, which is sufficient to make an informed decision to enter into and approve the terms of this Settlement Agreement;
 - 3.2.5. They have full authority to execute this Settlement Agreement in the capacities noted so as to bind each such party to this Agreement; and

- 3.2.6.** No oral understanding, statement, promises or inducements contrary to the terms of this Settlement Agreement exist.
- 3.3.** Customer further represents and warrants that:
- 3.3.1.** Customer has not sold, pledged, encumbered, or otherwise disposed of, in whole or in part, voluntarily or involuntarily, any of the claims released in the general release above; and
- 3.3.2.** Customer is not subject to any bankruptcy filing.
- 4. NON-DISPARAGEMENT AND CONFIDENTIALITY**
- 4.1.** Customer and Customer's counsel agree not to make any statements, written or verbal, or cause or encourage others to make any statements, written or verbal, that defame, disparage or in any way criticize the personal or business reputation, practices or conduct of Sunrun, its employees, directors, officers, agents and/or vendors in any way related to the allegations in the Damage Claim. It is understood that this non-disparagement agreement does not prevent the disclosure of information that is reasonably required by law, by any federal, state or local governmental agency or any court, or otherwise by written authorization by an authorized representative of Sunrun.
- 4.2.** The Parties and their respective counsel agree to keep the terms of this Settlement Agreement confidential and not to directly or indirectly disclose such terms to anyone other than the Parties' respective directors, officers, employees, accountants, insurers and counsel and those others who need to know such information in order to implement this Settlement Agreement or to perform professional services for such Party, but only to the extent necessary for such purposes. To the extent that Customer or Customer's counsel is compelled by process of law to disclose the amount of the Settlement Payment or the terms of, or facts related to, the Settlement Agreement, Customer shall promptly notify Sunrun by providing written notice via overnight courier addressed to: Legal/Litigation Department, Sunrun Inc., 1800 W Ashton Blvd., Lehi, UT 84043, with a copy emailed to LegalEscalations@Sunrun.com, at least fourteen days prior to producing this information. To the extent that Customer or Customer's counsel is required to disclose the amount of the Settlement Payment or the terms of, or facts related to, the Settlement Agreement in obtaining professional advice, Customer and Customer's counsel shall instruct such professional that such information is subject to the terms set forth herein and is required to be kept confidential.

- 4.3. Customer and Customer's counsel represent and warrant that they have not publicized the details of this settlement, and that they have not to initiate contact with or otherwise respond to inquiries from the media, nor will they issue press releases, public statements, or otherwise publicize same.

5. **GENERAL RELEASE AND COVENANT TO NOT SUE**

- 5.1. Customer, on behalf of Customer and any of Customer's past, present, and future agents, attorneys, representatives, administrators, executors, heirs, devisees, predecessors, successors, and assigns, (collectively, the "Releasing Parties") hereby release and forever discharge Sunrun and their respective past, present, and future employees, present and former shareholders, officers, managers, members, directors, partners, agents, vendors, brokers, contractors, subcontractors, affiliates, subsidiaries, parents, corporations, departments, divisions, insurers, attorneys, heirs, estates, predecessors, successors and assigns, and anyone acting on their behalf (collectively, the "Released Parties"), and each of them, jointly and severally, from any and all claims or counterclaims, causes of action, remedies, damages, injuries, liabilities, debts, suits, demands, actions, costs, expenses, fees, controversies, set-offs, sums of money, third party actions or proceedings of whatever kind or nature, whether at law, equity, administrative, arbitration or otherwise, whether known or unknown, foreseen or unforeseen, accrued or un-accrued, suspected or unsuspected in any way out of, based upon, or relating to your relationship with Sunrun or the installation of the system on your Property (hereinafter, "Release"). Customer, moreover, agrees to indemnify, defend and hold harmless the Released Parties in any separate action arising out of or related to the Damage Claim. In addition, this general Release is separately bargained for and an essential part of this Settlement Agreement. Customer hereby covenants not to sue the other Parties concerning any matter released, including, if relevant, the Damage Claim.
- 5.2. **Section 1542 Waiver.** To the extent that Customer is waiving "unknown" claims as well as known claims in Section 5.1, Customer expressly waives any protection against such waivers provided by Section 1542 of the California Civil Code which provides:

A GENERAL RELEASE DOES NOT EXTEND TO CLAIMS THAT THE CREDITOR OR RELEASING PARTY DOES NOT KNOW OR SUSPECT TO EXIST IN HIS OR HER FAVOR AT THE TIME OF EXECUTING THE RELEASE AND THAT, IF KNOWN BY HIM OR HER, WOULD HAVE

**MATERIALLY AFFECTED HIS OR HER SETTLEMENT WITH THE DEBTOR
OR RELEASED PARTY.**

6. DISCLAIMER OF LIABILITY

This Settlement Agreement shall not be considered an admission of liability and/or responsibility by any Party. Sunrun expressly denies liability in connection with the claims Customer has made, including but not limited to the Damage Claim, and this Settlement Agreement and the performances provided hereunder are made and assumed for the compromise and settlement of disputed claims and are not, and shall not be construed to be, an admission of liability, an admission of the truth of any fact, or a declaration against interest on the part of any of the other Released Parties.

7. TAX CONSEQUENCES

Customer acknowledges and agrees that Sunrun may issue one or more 1099 Forms in accordance with federal law related to the settlement payment made by Sunrun to or for the benefit of Customer pursuant to this Settlement Agreement. Customer and Customer's counsel are solely responsible and agree to release and hold Sunrun harmless for any and all potential and/or actual tax consequences that result from this Settlement Agreement. Sunrun shall not be responsible for any tax implications, personal or otherwise, of the settlement with respect to Customer and/or Customer's counsel.

8. GOVERNING LAW

This Settlement Agreement shall be enforced and construed in accordance with and governed by the laws of the State in which the Property is located, without regard to conflicts of laws principles thereof.

The parties acknowledge that this Settlement Agreement evidences a transaction involving interstate commerce. Notwithstanding the provision in the preceding paragraph with respect to applicable substantive law, any arbitration conducted pursuant to the terms of this Settlement Agreement shall be governed by the Federal Arbitration Act (9 U.S.C. §§ 1-16).

9. SUCCESSORS/BINDING EFFECT

This Settlement Agreement shall be binding upon and inure to the benefit of the Parties and their respective agents, next of kin, executors, administrators, legal representatives, successors and assigns.

10. EXECUTION AND COUNTERPARTS

This Settlement Agreement may be executed in counterparts, each of which shall be deemed one agreement, and, upon execution by the Parties hereto, each copy so executed shall be deemed an original for all purposes.

11. AUTHORITY TO EXECUTE THIS AGREEMENT AND RELEASE

Each Party whose signature is affixed to this Settlement Agreement in a representative capacity represents and warrants that he is authorized to execute this Settlement Agreement on behalf of the entity or person and to bind the entity or person on whose behalf such signature is affixed.

12. ENTIRE AGREEMENT AND SEVERABILITY

This Settlement Agreement constitutes the entire agreement and understanding among the Parties with respect to the settlement of claims as set forth herein, and supersedes and replaces any prior agreements and understandings, whether oral or written, between and among them, with respect to such matters. This Settlement Agreement does not modify the Service Agreement except as expressly stated herein (hereinafter, "Effect on Service Agreement"), and all other terms of the Service Agreement shall continue in full force and effect. If any provision or portion of this Settlement Agreement is held invalid, void or unenforceable under any applicable statute or rule of law, only that provision, or portion thereof, shall be deemed omitted from this Settlement Agreement, and only to the extent to which it is held invalid, and the remainder of the Settlement Agreement shall remain in full force and effect.

13. ARBITRATION

Any dispute, claim or controversy arising out of or relating to this Settlement Agreement or the breach, termination, enforcement, interpretation or validity thereof, including the determination of the scope or applicability of this agreement to arbitrate, shall be determined by arbitration administered by the American Arbitration Association (AAA) in accordance with its Streamlined Arbitration Rules & Procedures. The arbitration shall be overseen by the AAA office nearest to

the Property. The parties shall jointly request that the appointed arbitrator administer the arbitration efficiently and, if possible, issue a decision within six (6) months from the date the arbitrator is appointed. The arbitrator's award shall set forth both the legal and factual basis of the award. The arbitrator shall allow limited discovery to enable each Party to present their respective case but will be mindful of the Parties' mutual desire to avoid the expense of broad discovery typically allowed in civil litigation.

14. ATTORNEYS' FEES

In the event any Party is required to file an action to enforce its rights under this Settlement Agreement, it is agreed that the prevailing Party shall be entitled to recover its costs and expenses, including the costs of mediation, arbitration, litigation, court fees, and reasonable attorneys' fees incurred in connection with such an action.

15. ASSIGNMENT

Each Party hereby represents and warrants that they have not assigned, conveyed or granted any right, option, or interest in, or otherwise transferred in any manner whatsoever to any person or entity, any right, claim or cause of action that is the subject of this Settlement Agreement.

16. NO ORAL MODIFICATION OR WAIVER

Each of the Parties understands and agrees that this Settlement Agreement shall not be changed or amended in any respect, nor any of its provisions waived, except by a writing executed by all of the Parties hereto or their authorized representatives.

Signature page follows

IN WITNESS WHEREOF, the Parties, have duly authorized and caused this Settlement Agreement to be executed as follows:

Ravi Jain

Dated: _____

By: _____

SUNRUN INC.

Dated: _____

By: _____

Kelley Molton
Director, Customer Solutions